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Chapter 6 - Family Members of J-1 Exchange Visitor

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The J-1 exchange visitor's accompanying dependent family members may be admitted into the United States in J-2 classifications^[1] if each applicant presents a Certificate of Eligibility for Exchange Visitor (J-1) Status ([Form DS-2019](#)), issued in the applicant's name by a program approved by the U.S. Department of State for participation by J-1 exchange visitors.

J-2 spouses of J-1 Conrad 30 waiver recipients cannot change status in the United States from J-2 to H-1B temporary worker status until the J-1 Conrad 30 waiver recipients have completed the requisite 3-year term of employment in a designated medically underserved area. Once the J-1 Conrad 30 waiver recipients have fulfilled all of the terms and conditions imposed on the waiver, including the 3-year period of employment with the health care facility, the J-1 Conrad 30 waiver recipients (and dependent family member or members) become eligible to change to another nonimmigrant status or adjust status to a lawful permanent resident.^[2]

If the waiver recipients fail to fulfill the terms and conditions imposed on the waiver, they and their dependent family member or members will once again become subject to the 2-year foreign residence requirement under [INA 212\(e\)](#).^[3]

J-2 nonimmigrants may be eligible for employment authorization;^[4] however, they may not use their income to support the J-1 nonimmigrant. To apply for employment authorization as a J-2 nonimmigrant, the dependent family member must file an Application for Employment Authorization ([Form I-765](#)). USCIS may authorize the employment for the length of the J-1 exchange visitor's stay or 4 years, whichever is shorter.^[5]

Footnotes

[^1] See [INA 101\(a\)\(15\)\(J\)](#).

[^2] See [INA 214\(l\)\(2\)\(B\)](#).

[^3] See [8 CFR 212.7\(c\)\(9\)](#) and [8 CFR 248.2\(a\)\(3\)](#).

[^4] See [8 CFR 274a.12\(c\)\(5\)](#).

[^5] See [8 CFR 214.2\(j\)\(1\)\(v\)](#).

Current as of December 22, 2025
